

December 1, 2008



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14717
(FIRST REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-time, one-way transportation in commerce of approximately 10,000 plastic receptacles containing the residue of certain pesticide products in a non-DOT specification closed bulk bins. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.301(c) in that the marking requirement is waived; § 172.500(a) in that alternative placarding is authorized; and §§ 173.241 and 173.243 in that the use of non-DOT specification bulk packaging is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Amvac Chemical Corporation dated May 29, 2008 and additional information dated July 22, 2008, submitted in accordance with § 107.105 and the public proceeding thereon.

December 1, 20086. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Organophosphorus pesticides, liquid, toxic, flammable, flash point not less than 23 degrees C	6.1	UN3017	II
Pyrethroid pesticide, liquid, toxic, flammable, flash point not less than 23 degrees C	6.1	UN3351	III
Pyrethroid pesticide, solid, toxic	6.1	UN3349	III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed are approximately 10,000 plastic inner receptacles (bottles) inside non-DOT specification or UN 4G fiberboard boxes. The inner plastic bottles contain residual amounts of the materials identified in paragraph 6. The amount of residual material may not be greater than 1% of the bottle's capacity. The fiberboard boxes are loaded and compacted into leak-proof and sift-proof non-DOT specification roll-off bins conforming to the specifications on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA).

b. OPERATIONAL CONTROLS -

- (1) The complete packagings are to be placed in the compactor without removing the inner bottles.
- (2) The compacting operation is to be performed prior to loading the roll-off bins on a transportation vehicle.
- (3) The operator(s) of the roll-off bins must be present during all compacting operations.

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8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Marking -

(1) The requirement to mark the package with the special permit number in § 172.301(c) is waived.

(2) The roll-off bin may be marked with identification numbers as specified in § 172.332 in lieu of placards.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle and Rail Freight.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

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Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the
Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm.

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